Hesham Rehman vs The State Govt Of Nct Of Delhi on 18 March, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 268/2025
HESHAM REHMAN
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THE STATE GOVT OF NCT OF DELHI
Through: Mr. Amit Ahlawat,
with Mr. Avinash
Cell, IFSO.
CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
OR

% 18.03.2025 CRL.M.(BAIL) 464/2025 (for interim bail for a period of 60 days)

1. Through this application, the Applicant seeks interim bail for a period of 60 days in FIR No. 214/2023 under Sections 419 and 420 of the Indian Penal Code, 1860, registered at P.S. Special Cell, on the ground that he needs to attend to his father, a heart patient who needs to undergo a procedure for replacement of pacemaker.

2. The medical record of the Applicant's father, as annexed with the present application, has been verified by the State. However, Mr. Amit Ahlawat, APP for the State, submits that there are other family members who can attend to the Applicant's father and thus, the release of the Applicant is not necessary.

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3. In response, Ms. Dolly Sharma, counsel for the Applicant states that currently, the Applicant's wife is living separately from the family, whereas the Applicant's mother is also an aged person. Therefore, she urges that the Applicant's presence would be necessary to fulfil hospital formalities, making financial arrangements for the procedure and to take care of his father after the procedure.

4. The Court has considered the submissions of the parties. Considering the fact that the medical documents of the Applicant's father have been verified by the State and are found to be genuine as well as considering the urgent medical need of the Applicant's father, the instant request for interim bail is accepted.

5. Accordingly, the Applicant is directed to be released on interim bail for a period of two weeks, on furnishing a bail bond for a sum of INR 50,000/- with two sureties of the like amount, subject to the satisfaction of the concerned Jail Superintendent/Trial Court/ Duty Metropolitan Magistrate on the following conditions:

> (a) The Applicant shall surrender before the Jail Superintendent/Trial Court/ Duty Metropolitan Magistrate, on or before the expiry of 2 weeks from the date of release;
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> (b) The Applicant shall, under no circumstance, leave the country without permission of the Trial Court;
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> (c) The Applicant shall appear before the Trial Court as and when directed;
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> (d) The Applicant shall, during the period of his release, provide the permanent address where he would be residing, and shall not change the address without informing the concerned IO/ SHO;

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(e) The Applicant shall, upon his release, give his mobile number to the concerned IO/SHO and shall keep his mobile phone switched on at all times;

(f) The Applicant shall not indulge in any criminal activity and shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case, or tamper with the evidence of the case, in any manner whatsoever.

6. In the event of there being any FIR/DD entry/complaint lodged against the Applicant, it would be open to the State to seek redressal by filing an application seeking cancellation of bail.

7. With the above directions, the present application is disposed of.

8. Considering that the instant case pertains to an alleged fraud relating to Bitcoins, Mr. Amit Ahlawat, APP for the State, submits that the Complainant would also like to make submissions. For this purpose, the Complainant shall appear before the Court on the next date of hearing.

9. List on 29th April, 2025.

SANJEEV NARULA, J MARCH 18, 2025 nk This is a digitally signed order.

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